

23PSCV01923 23PSCV01923

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Case Number: 23PSCV01923 Hearing Date: September 8, 2026 Dept: H

Grassy Sprain

Group, Inc. v. Medgomics Inc., et al.,

Case No. 23PSCV01923

ORDER ON

DEFAULT JUDGMENT APPLICATION

Plaintiff Grassy Sprain Group, Inc.'s

Application for Default Judgment is DENIED without prejudice.

Background

Plaintiff Grassy Sprain Group, Inc. ("Plaintiff") is a debt buyer.

Plaintiff was assigned its collection rights from LoanMe, Inc.

On June 28, 2023, Plaintiff filed a complaint, asserting causes of action against Medgomics Inc. ("Medgomics"), Steve Sommer ("Sommer") and Does 1-10 for: (1) Open Book Account, (2) Account Stated, (3) Reasonable Value of Goods/Services Received/Funds Provided, (4) Agreement, (5) Promissory Note, and (6) Quantum Meruit.

On June 10, 2024, an "Order for Publication" as to Sommer was entered; on October 23, 2024, Plaintiff filed proof of publication.

On December 6, 2024, Sommer's default was entered.

On February 27, 2025, an order directing that service of the summons as to Medgomics be made on the California Secretary of State was entered.

On July 31, 2025, Medgomics' default was entered.

An Order to Show Cause Re: Default Judgment is set for September 8, 2026.

Discussion

Plaintiff's

Application for Default Judgment is denied without prejudice. The following defects are noted:

1. The Court has denied Plaintiff's application for default judgment on two prior occasions. On October 16, 2025, the Court issued an order denying the application without prejudice and noting that "Exhibit B does not contain any signatures, electronic or otherwise. Plaintiff is directed to clarify for the Court whether or not the entire document has been provided." Then, on May 8, 2026, the Court again denied the application for default judgment, noting that the same defect persisted and referencing the prior October 16, 2025 order. Specifically, the order stated:

"The Court denied Plaintiff's previous default prove-up application on October 16, 2025 without prejudice; in doing so, the Court observed, in part, that:

'Exhibit B does not contain any signatures, electronic or otherwise. Plaintiff is requested to clarify for the Court whether or not the entire document has been provided.'

This defect persists. The Court notes that the Note makes reference to, inter alia, 'the undersigned,' to 'the personal guarantee signed below,' and to 'no party who signs this Note,' indicating that there is a signature page. There is also a paragraph entitled 'Electronic Signatures.' The Court requests that these signatures be furnished or that Plaintiff explain why said signatures cannot be furnished."

Plaintiff

still has failed to provide Exhibit B containing signatures or provide any explanation as to why signatures cannot be furnished. In the declaration in support of Plaintiff's request for default judgment, Elizabeth Schaefer does

not provide any explanation as to why Exhibit B does not contain signatures. The Court asks the moving party to brief this issue to explain why this unsigned document is sufficient to constitute an enforceable contract.

2. Again, Plaintiff has utilized Judicial

Council Form CIV – 105 Request for Entry of Default, which is “[f]or use only in actions under the Fair Debt Buying Practices Act.” The Note is entitled “LoanMe, Inc. Small Business Loan” and provides that “the proceeds of this Loan will be used solely for business and commercial purposes and not for any agricultural, personal, family or household purpose.” The Court directs Plaintiff use Judicial Council Form CIV-100.

Accordingly,

the Application is denied without prejudice, and Plaintiff is directed to submit a revised and complete default judgment application that addresses the aforementioned issues. The Court continues the Order to Show Cause Re Default Judgment to December 15, 2026, at 8:30 a.m. The revised and complete default judgment application is due by November 15, 2026. The Court also sets an Order to Show Cause Re Dismissal for Failure to Obtain Default Judgment for December 15, 2026, at 8:30 a.m. given that Plaintiff has failed to address the specific deficiencies identified by the Court in two prior orders.